

against Defendant. (Deter Decl., ¶ 5.) Counsel's affidavit sufficiently constitutes an admission of fault that caused default to be entered against Defendant.

In opposition, Plaintiff argues that mandatory relief should not be granted because the failure to file a responsive pleading was not caused by Defendant's counsel's mistake. (Opp., p. 8.) Plaintiff reasons that Defendant's acts prior to default do not indicate there was a simple calendaring mistake because Defendant's counsel performed a conflict check upon receiving the case, she had been assisting in the preparation of the responsive pleading in the two weeks before receiving the notice of default, and counsel did not request an extension of time. (*Id.*, pp. 8-9.) In support, Plaintiff cites *Bailey v. Citibank, N.A.* (2021) 66 Cal.App.5th 335, where the court's order to grant mandatory relief due to attorney fault was reversed because counsel for defendant Citibank was retained after default was entered. (*Id.*, at p. 350.) In this circumstance, it is not possible for the attorney's error to cause default, making mandatory relief under section 473, subdivision (b), unavailable. (*Ibid.*) Here, Defendant's counsel was retained on January 27, 2026, and default was later entered against Defendant March 2, 2026. (Deter Decl., ¶ 4.) This timeline makes it possible for fault to be attributed to acts or omissions by Defendant's counsel. The evidence cited by Plaintiff does not demonstrate that the mistakes that caused default was actually caused by the client rather than their counsel. Further, the evidence does not contradict Defendant's counsel's assertion that, despite her active efforts in the case, a calendaring mistake caused her to miss the deadline.

For the above reasons, the court finds that mandatory relief must be granted. Defendant's motion is granted. As such, the court finds it unnecessary to address Defendant's alternative basis for relief. Accordingly, as the objections only relate to that theory of relief, they are moot, and are not addressed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 8/31/2026.
(Judge's initials) (Date)

(29)

Tentative Ruling

Re: ***Lopez v. Nationwide National Insurance Co.***
Superior Court Case No. 26CECG01234

Hearing Date: September 2, 2026 (Dept. 503)

Motion: Motion to Deem Admissions Admitted

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/1/2026.
(Judge's initials) (Date)